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Chapter 5 - Admissions, Extensions of Stay, and Changes of Status

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Guidance

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A. Admission and Limits on Extensions of Stay

If approved for nonimmigrant international cultural exchange visitor (Q-1) classification and found otherwise admissible, a beneficiary may be admitted as a Q-1 nonimmigrant for a period of up to 15 months from the date of initial admission.^[1]

An officer should not approve petitions for participants who have an aggregate of 15 months in the United States as a Q-1 nonimmigrant, unless the participants have resided and been physically present outside the United States for the immediate prior year.^[2]

B. Change of Status

Generally, a beneficiary in a current valid nonimmigrant status who has not violated his or her status is eligible to change status to a Q-1 nonimmigrant in the United States without having to return to his or her home country for a visa interview. USCIS may grant such a beneficiary Q-1 status for up to 15 months.^[3]

To change nonimmigrant status, the petitioning employer or agent should file a Petition for a Nonimmigrant Worker ([Form I-129](#)) before the beneficiary's current status expires and indicate the request is for a change of status.^[4] The beneficiary cannot work in the new Q-1 nonimmigrant classification until USCIS approves the petition and the change of status request.

If USCIS determines that the beneficiary is eligible for Q-1 classification, but not a change of status, the beneficiary must depart the United States, apply for a Q-1 nonimmigrant visa at a



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(unless visa-exempt) and then be readmitted to the United States as a Q-1 nonimmigrant.^[5]

C. Change of Employer

Q-1 nonimmigrants may change employers without leaving the United States. A new employer must file a petition with all required evidence establishing the existence of an international cultural exchange program. The total period of stay in the United States, however, remains limited to 15 months.^[6] The beneficiary cannot work for the new employer until USCIS approves the petition and the change of status request.

Footnotes

^[^1] See [8 CFR 214.2\(q\)\(7\)\(iii\)](#).

^[^2] See [8 CFR 214.2\(q\)\(7\)\(iv\)](#).

^[^3] See [8 CFR 214.2\(q\)\(7\)\(iii\)](#).

^[^4] See [8 CFR 248.3\(a\)](#).

^[^5] There is no appeal from a change of status denial. See [8 CFR 248.3\(g\)](#).

^[^6] See [8 CFR 214.2\(q\)\(5\)\(v\)](#).

Current as of December 22, 2025
